

## Supplier FAQ

How will Coupa impact the way GitLab works with suppliers?

- To take full advantage of the platform and enable electronic transactions to flow to and from suppliers, selected suppliers will be enabled in Coupa in time for go-live at no cost to them. The Coupa Supplier Portal is a free tool for our suppliers to use and easily do business with GitLab.

Are suppliers required to sign up with Coupa?

- Yes. Coupa will be the only platform for transacting with GitLab, with Purchase Orders and associated invoices flowing through Coupa. For suppliers who choose to use the Coupa Supplier Portal (CSP), it is a free tool that allows to easily do business with GitLab.

How will suppliers be notified when a PO has been raised for them?

- Depending on the preferred method of transacting:  
- SAN supplier will receive a PO emailed to their inbox  
- CSP suppliers will receive notifications via the CSP platform (supplier has multiple options on how to set up notifications: email, SMS)  
- cXML supplier will be notified in their own system as per their setup and they will receive notification in CSP.

## CSP/SAN FAQ

What is the Coupa Supplier Portal (CSP)?

- The Coupa Supplier Portal (CSP) is a portal which enables GitLab's suppliers to receive purchase orders and create invoices electronically. Suppliers can also create and update catalogues through the CSP.

What are the key benefits of joining the CSP?

- CSP makes managing customers and transactions easy.  
- Roll out world class processes and best-in-class content management.  
- Manage settings on a customer-by-customer basis, including viewing purchase orders, setting up delivery methods, creating catalogs etc.  
- Tracking the real time status of transactions.

How long does it take to register for the CSP?

- The registration process takes less than 5 minutes upon receiving the emailed invitation email.

Do suppliers need additional software to use the CSP?

- No, additional software is not required. As Coupa is a cloud-based technology, all they will

need is an active email account and web browser to access the portal and transact with GitLab.

How much does it cost to transact with GitLab via the CSP?

- There is no cost for suppliers to use Coupa.

How do suppliers register for the CSP?

- The supplier will receive an email invitation to join the CSP and GitLab will partner with them to ensure a smooth transition to Coupa.

If the supplier already have a Coupa Supplier Portal account, what do they need to do to enable GitLab?

- We still need the supplier to reply to our initial email so we can set their company up properly in our Coupa system. Once setup, they will be able to easily link GitLab to their Coupa Supplier Portal account.

Where can I find more information on the Coupa Supplier Portal?

- Here are some useful links with information on the Coupa Supplier Portal:
  - <<https://compass.coupa.com/en-us/products/product-documentation/supplier-resources/for-suppliers>>
  - <<https://supplier.coupa.com/help/>>
  - <<https://supplier.coupa.com/help/creating-an-account-with-coupa/>>
- Chat with Coupa Support
  - You can chat with Coupa Support to get a quick response or resolution to your question/issue. Click on the "Chat with Coupa Support" button located in the lower right corner of any screen (see below screenshot).
  - If there's no Support Agent available, you can submit a case by providing the subject of your question/issue and a detailed description. You will receive confirmation that your case was submitted and logged. A Support Agent will respond when available.

- Suppliers can also email Coupa Support Team ([supplier@coupa.com](mailto:supplier@coupa.com)).

Do suppliers need to set-up a CSP account, or will this be done for them?

- GitLab will email the supplier links on how to register on the Coupa Supplier Portal and they will be provided with an invitation to join CSP. Suppliers must set up an CSP account and linking with GitLab Coupa system will be done automatically.

Does SAN option connect to the CSP and can suppliers have both?

- Yes, suppliers can have both SAN and CSP set up. CSP suppliers will have SAN by default. Please note, suppliers who have initially chosen SAN will have an option to join CSP through the PO email sent.

cXML Option FAQ

Do suppliers receive purchase orders via e-mail if they select cXML as the transmission method?

- If they select cXML as your transmission method, they will not receive purchase orders via e-mail. The cXML links directly between the supplier's system and GitLab's system.

## Coupa Pay

What is Coupa Pay?

- Coupa Pay is a digital payments program to pay your invoices. You will be able to track and manage all your accounts receivable in one place and obtain instant access to every payment and associated remittance advice.
- Below is a useful link providing more information regarding Coupa Pay:
  - <https://supplier.coupa.com/gitlab-payment>

How do suppliers register for Coupa Pay?

- Suppliers will need to set up their Remit-To account in Coupa. It can be done during the initial onboarding process or via the Coupa Supplier Portal (CSP).
- Below are some useful Coupa links providing more information regarding setting up Remit-To accounts:
  - <https://compass.coupa.com/en-us/products/product-documentation/supplier-resources/for-suppliers/AdministertheCSP/06ViewandManageRemit-toInformation>
  - <https://supplier.coupa.com/coupa-pay-help/getting-set-up-for-online-payments>
  - <https://supplier.coupa.com/help/remit-to-improvements>

{{% panel header="Important Notes" header-bg="warning" %}}

- Avoid using any special characters when entering Remit-To Address.
- The currency of your bank account has to match the currency of your invoices.

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If there are any issues with setting up a Remit-To account, please email Coupa Support Team ([supplier@coupa.com](mailto:supplier@coupa.com)) for assistance.

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## SECTION: finance/procurement/field-marketing-events.md

## Important to Know

- If you are looking to work with a new service provider, review the policy for selecting new suppliers on the Vendor Selection Process page.
- Do NOT agree to ANY business, legal, and or pricing prior to engaging the Procurement Team.
  - This ensures alignment across the multiple functions to make good-faith commitments to vendors and don't put our company in to possible risk.

How Do I Submit a Request for a Contract and PO?

- Once you've chosen your vendor and have followed the Bid Requirements per above, follow these instructions:

1. Login to Coupa via Okta.

1. If this is a new supplier, go to the "Forms and Quick Links" section on the Home screen, click on "Request a New Supplier" and complete the required fields. Click "Review".

- Allow 1-2 business days for processing new supplier.

1. If this is an existing supplier (or once your new supplier is in the system) select "Write a request" in the upper right of your screen under the search bar.

1. Enter the required Fields and "Add to Cart"

1. Click on your Cart in the upper right, complete remaining fields. Be prepared to include the following:

- Whether or not the vendor will have access to red and/or orange data

- All data and systems the vendor will have access to

- Failure to complete this field will significantly delay the review and approval of your request.

- Vendor's Security Contact Email (oftentimes this is different from the main contact.

Providing the head of security contact info from the vendor's company will expedite the security review and avoid delays)

- Upload any contracts you've received.

- Click "Submit for Approval"

What Happens after I submit my Request?

- The Coupa Req will appear as "Pending Buyer Action", this means it is under review from the procurement team.

- If the contract requires negotiation, the req will stay in "Pending Buyer Action" status and a "Negotiation" Label will be added to the Coupa Req.

- Within 1-2 business days a member of the procurement team will either reach out a-sync, and/or schedule a meeting to review depending on the complexity.

- If your contract does not require negotiation, the Procurement team will review for accuracy and if questions will ping you directly in the Coupa request.

- Once negotiation is completed and/or it is determined that negotiation is not needed, your purchase request will be approved by procurement and will advance to the next approver, which is typically fp&a.

How Long Does it take to get my New Software Purchase Approved?

- Contracts greater than \$25K are typically negotiated by the procurement team, unless you've already done so and the pricing is benchmarked.

- The negotiation, review and approval cycle typically takes 2-3 weeks based on the scope of the request. Large and/or complex contracts can take longer to negotiate.

- Contracts less than \$25K do not need to be negotiated by procurement unless there is a business reason to do so.

- If no negotiation is required, the review and approval cycle typically takes 1-2 weeks.

Large and/or complex contracts can take longer, and this can vary wildly based on supplier input into the process.

- The procurement process consists of multiple approvals from different cross-functional teams, this can include finance, IT, security, and legal.

- All approvals are necessary before your contract can be signed for compliance purposes.

## What if I have an Urgent Request?

- Urgent requests that need approval in less than 5 business days, need to be escalated in the procurement channel for expediting per the below.
- In your slack message you MUST include:
  - Link to your Coupa Request
  - Contracts should not be posted directly in slack
  - Date needed
  - Specific and quantifiable impact to the business if date is missed.
  - "Supplier wants it signed today" does not qualify as a reason for escalation and these requests will be denied.
  - "Price will increase \$45K if not signed by Friday" or "Material negative brand impact if not signed by Friday due to missed PR deadlines" are specific, tangible, business impacts, that will be reviewed.
- Urgent requests will be evaluated. Please note these are disruptive to our workflow and our ability to meet SLA's for requests opened on time.
- We may or may not be able to accommodate your urgent request based on the risk and bandwidth available.
- If you have a critical request, enter the request into Coupa 1-2 weeks prior to needing approval to avoid needing escalation.

## Process for Sales Events That Cannot be Made Public

- The Events and Field team members may engage in detailed discussions related to specific upcoming sales events.
- For these discussions, stakeholders will use a private namespace called Sales Event Planning Private. For each event type (e.g., Sales Kick-off, QBR...etc.) a "Project" will be created.
- An issue will then be created (for each individual Event) within the applicable Project that will include: (i) applicable Agreements, (ii) description of event, (iii) important dates / times of events, (iv) any applicable changes that are being requested, and (v) any other information that is helpful for the Field, Events and Legal team to review.
- NOTE: All Event / Field Team Members must still create a Coupa request (in line with steps here) for any and all events. This is the case as such information is required in Coupa in order to ensure, (i) on-time / accurate billing, (ii) storage of Agreements, and (iii) review from other stakeholders (e.g., Finance)

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## SECTION: finance/procurement/individual-use-software.md

## Individual Use Software Overview

Individual use software is characterized as software essential for executing job responsibilities and that is distinct from the existing tools and platforms already owned or accessible to your team.

An individual's annual expenditure on Individual Use software should not surpass \$5,000. Should the cost of your software exceed this threshold, or if multiple people on your team need access, please follow the Procurement process for submitting a new purchase request. Note that all software purchases charged to either personal or corporate credit cards will be DENIED for

reimbursement. You must follow the process below to cover your software purchases, which will be paid via Navan virtual card once all necessary approvals are obtained and documented.

Please refer to our Internal Acceptable Use Policy for questions regarding freeware, or to GitLab's Mobile Device Policy for information on accessing GitLab resources via Okta on your Mobile Device.

### I Need Individual Use Software- Where Do I Start?

If you require an individual use software subscription, please first check the list of Tech Stack applications and the Pre-Approved Individual Use Software listing.

- If your vendor is listed in the tech stack, please submit an access request using the Individual Bulk Access Request template.
- If your vendor does not appear in the tech stack, requests must be submitted via this Google Form to ensure appropriate routing.
  - Note that commonly requested Individual Use Software is documented within the Pre-Approved Individual Use Software and Freeware listing and is subject to expedited Security approval. This should be requested using the above-linked Google form.

Please consider whether one of our existing vendors may be able to service your needs before pursuing the usage of a new vendor. Where possible it is preferable to add users to existing agreements that have already been screened and approved as this can save GitLab money, decrease GitLab's threat landscape, and expedite access to the tools you need.

### What Happens When I Request Individual Use Software?

- Upon receipt, the Procurement team will open a GitLab Issue based on your responses and will route for the necessary approvals, including your manager, Security, and Privacy. Once the Issue is opened, please attach any relevant contracts, backups, or documents.
- Reviews may take several weeks, depending on the level of risk involved with your software of choice, the depth of review needed, and vendor responsiveness.
- Once all necessary parties have approved your software request, the Procurement team will issue you a virtual one-time use credit card via email to purchase the approved software license at the approved price.
- After you have purchased your software with the virtual credit card, please forward a copy of your receipt to [ap@gitlab.com](mailto:ap@gitlab.com) as confirmation if there are no other contracts or backup documents.

If you have any questions, please reach out to the Procurement team via the Procurement Slack channel.

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## SECTION: finance/procurement/office-equipment-supplies.md

For questions on our policy and how to submit your home office expenses, including which categories in Navan to use, please refer to the Global Travel and Expenses handbook page's "Equipment" section.

For any additional questions about this process or about utilizing your Virtual Card (new hires

only), please reach out via HelpLab or email [expenses@gitlab.com](mailto:expenses@gitlab.com).

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## SECTION: finance/procurement/tips-for-submitting-a-zip-request.md

If purchasing Home Office Equipment and/or Software for your individual work use that is <\$5K USD, see Other Services since a Zip Purchase Request is not required in these instances.

### Getting Started with Zip

1. Login to Zip via your Okta home page.

1. If you need Zip access, submit an access request [here](#).

1. Review Zip training materials:

- Zip End Users Guide - Provides a step-by-step guide on how to submit different types of requests, how to review and approve requests for approver groups, how to check the status of your request, etc.

### Tips for Request Types

Depending on the commodity type of your request, specific conditional questions will populate in the Zip request intake form to include the required approval groups in the workflow and provide them with the needed information to review your request. To help ensure your request is completed within the SLAs, follow these tips:

#### Description and Category

Provide a brief description of your purchase and be sure to select the correct category, subcategories, and type of purchase

- New purchase would be any product or service that is brand new.
- Renewal would be any renewals or add-ons with an existing vendor.

### Submitting a request for a Contingent Worker

At GitLab we have a Contingent Worker Policy in place beginning March 2025. This policy has been designed to provide Team Members a high-level overview and guidelines on the different types of contingent workers available as well as how and when each should be used. After review you'll need to identify which type of contingent worker you are interested in hiring. There are three categories of contingent workers at GitLab:

- Staff Augmentation Workers
- Consultancy Services
- Independent Contractors

#### Staff Augmentation Workers

Consists of supplemental, non-team member staff used temporarily to fill skill gaps or to provide additional project resources. Staff Augmentation Workers are always provided by an agency. If a Staff Augmentation Worker isn't through an agency, they must qualify as an

Independent Contractor. The Staff Augmentation Worker works within the GitLab organization under the general guidance of a GitLab hiring manager. GitLab maintains responsibility for work deliverables. Little or no responsibility is transferred to the vendor or their staff.

Knowledge is solely contributed from the supplied worker. GitLab manages the duration of the assignment. In addition to "what" is delivered and "when", GitLab maintains control over:

- "who" delivers the service
- "where" the service is delivered from
- "how" service is delivered

Services may be required on a full-time or part-time basis but invariably always temporary rather than permanent. Limited details of these Staff Augmentation Worker are to be held in Workday if the contract worker requires access to Okta and core GitLab applications.

Max duration for this worker type is 24 months. The assignment end date must be established up front as established in the Purchase Order. The same Staff Augmentation worker can not return to GitLab after ending an assignment for 3 months.

### Consultancy Services

Consultancy Services are provided by a vendor that contracts with GitLab to provide professional services including expert advice within a particular knowledge domain. GitLab contracts with the third party for certain services and the contract is for the scope of work, i.e., the contract is for a product or service and not for an individual worker, for which GitLab is the customer. This arrangement is for non-core work that we trust an expert company to perform on our behalf and this arrangement is not for situations where we need supplemental labor to assist with the peaks of business. The third party has responsibility for the worker(s) and determines who will perform work and how work will be accomplished. Vendor assumes some or all responsibility for service delivery as detailed in a Statement of Work. In addition to providing staff, Vendor may be expected to provide access to its Intellectual Property to deliver service. Vendor manages its staff (e.g. turnover). GitLab maintains responsibility for "what" is delivered and "when", but vendor maintains control over:

- "who" delivers the service (staffing)
- "where" the service is delivered from
- "how" the service is delivered

Limited details of these Contractor Personnel are to be held in Workday only if the contract worker requires access to Okta and core GitLab applications.

There is no limit on the length of contract, it will be the length of assignment necessary to fulfill the scope of work determined by the applicable contract and MSA. GitLab has the right to review and update the MSA as necessary.

### Independent Contractor (option not preferred, used by exception only)

An individual(s) who works for a company that they own (sole proprietorship) providing project deliverables incorporated into a Statement of Work (SOW). The individual must work truly independently, provided the freedom of action as to the details, methods, and means of performing services. Independent contractors typically perform services for more than one



company. Independent contractors may work on outcome based/milestone arrangements in which the business pays the contractor based on the deliverable achieved or they may get paid on a time and materials basis. While this contingent worker type may be used in certain circumstances, its use is by exception only. All Independent Contractors must be contracted using the Independent Contractor Service Agreement (ICSA).

Independent contractors (also called consultants, freelancers, self-employed workers):

- are used for subject matter expertise that is outcome or project based
- GitLab maintains responsibility for "what" is delivered, "who" delivers the service and "when", but Independent Contractor maintains control over:
  - "where" the service is delivered from
  - "how" the service is delivered

The relationship is defined in the contract between GitLab and the independent contractor.

Limited details of these Contractor Personnel are to be held in Workday if the contract worker requires access to Okta and core GitLab applications.

Max duration for this worker is 24 months, with a 3 month break. End date must be established up front.

#### How to Submit a Zip Request for a Contractor

##### 1. Before submitting a Zip request for a Contingent Worker:

- Confirm you have internal approval from FP&A and your management to hire a contingent worker and that this role is (i) not currently being performed by a GitLab Employee or (ii) there is not an open headcount position for this role.
- If the Contingent Worker requires access to Okta and/or core GitLab core applications, a GitLab laptop must be issued followed by a Zip approval from IT Ops validating laptop issuance.
- If the Contingent Worker requires GitLab equipment (i.e. access to Orange or Red data), which will require a Security Review, the Zip purchase requisition will need to be submitted 10 days in advance of the normal approval timeline to account for ordering and shipping of the equipment. Certain locations will require IT Approval before providing the equipment. If you are unsure if the IC will require GitLab equipment, please reach out to the ithelp channel in slack.
- Lead times start once the purchase requisition has been fully approved and the PO is released. Please account for this time and the Zip approval times to determine how far in advance your Zip Request needs to be submitted prior to the IC's start date.

##### 1. Open Zip to submit your request for a contingent worker by selecting "New Request" and then "Request a Purchase - Contingent Worker or Consultancy Services"

##### 1. In the "General Information" section, you'll need to fill out the following information:

- Who is the requester? (most likely this is yourself)
- Provide a Title for this request (Best practice: "Vendor Name - FYXX Services Name/Description")
- Which detailed category best describes your purchase? (select either Staff augmentation, Consultancy Services, or Independent Contractor)
- What type of purchase is this? (select new, renewal, or extension)

- Will a virtual card be used to pay this vendor?
- What is the vendor's name (look first to see if the vendor has been used previously at GitLab, if not you'll need to create a new vendor)
- In which country is the contingent worker working from?
- Will you be onboarding multiple contingent workers for this engagement?
- Do you have the contact information and personal email address(es) of the requested onboardee(s)? (this will be needed to track contingent workers in Workday, note: this information can come at a later date but not before everything is finalized)
- Who is the Manager for the Contingent Worker?
- What is the Business Title for this Contingent Worker?
- What is the Contingent Worker's Non-GitLab email address?
- What is the Contingent Worker's Legal First Name?
- What is the Contingent Worker's Legal Last Name?
- What is the Contingent Worker's Preferred First Name?
- What is the Contingent Worker's Preferred Last Name?
- What is the Contingent Worker's Address

1. In the "Spend Information" section, you'll need to fill out the following information:

- What subsidiary is this purchase for? (FP&A can help you answer this?)
- What is the desired start and end date for this purchase/contract? (Note: If this is a Staff Augmentation - the Start/End date should not be longer than 24 months)
- How much budget will you need for this purchase?
- Line type (select "amount")
- Coupa Subsidiary (this is typically your entity like GitLab Inc for US)
- Coupa Department (this is typically the org you sit in)
- Coupa GL Account (select 6017 Consulting Fees)
- Do you have any of the below supporting documentation? (MSA, SOW, etc)

1. In the "IT, Security, and Privacy Information" section, you'll need to fill out the following information:

- What type of access will the vendor need to data and information?
- Access to GitLab resources via personal devices is not permitted. Is the contingent worker issued a vendor-managed laptop?
- Does this request involve the use of a web application, web portal, or software system?

1. The Zip Request will be reviewed by the applicable stakeholders

1. Once the Zip Request is approved, open and complete the Individual Contributor Onboarding Issue

- If you need to extend the contract term of an IC, submit a Zip Change Request
- If you need to cancel / terminate the Contractor's agreement earlier than the specified term, review the Cancellation process and reach out to the Procurement Team in the procurement slack channel

Contingent Workers that require Orange and Red Data access, that will be processed or stored outside GitLab's systems, are considered "Professional Services" and are subject to a full security review. Please see the Security Third Party Risk Management Handbook for more details.

## Submitting a request for New Software

1. All new software purchases also need reviewed by IT
1. New software vendors will need to complete the IT Questionnaire tab.
  - IT requests this information to perform a comprehensive assessment of applications against GitLab technology requirements.
  - Please make a copy of this tab (if not filled out during a formal RFP), have the vendor complete, and attach in the documents section of your Zip Request for IT review.
1. If you have any questions regarding the IT Questionnaire, please contact the Enterprise Applications team in the enterprise-apps slack channel.

## Other Tips for Submitting Requests

1. Will a virtual card be used to pay this vendor?
  - This applies to instances where the supplier only accepts online credit card payments or for one-time vendor use such as events. More info on allowed uses [here](#)
  - More information in the Zip End Users Guide on how to submit a request using for a virtual card
1. Vendor Name and Primary Contact
  - If an existing vendor or you are unsure, start typing the vendor name in Zip. If vendor exists, Zip will populate it in the dropdown. You can then select the existing Primary Vendor Contact or select 'Add new contact' and complete the contact information
  - If New Vendor:
    - Review the Vendor Selection Process and the RFP guidelines or reach out to your Procurement Category Manager if you have questions or need support
    - If this supplier is not already in our system, you will need to click the "add new" option once you type in the supplier name. Please be sure to fill in all details so that the Procurement team can complete the New Vendor Onboarding step. While we use Zip internally now, Coupa will still be the tool used to pay our suppliers.
1. Spend Information
  - Provide all of the spend details including required budget amount, contract term, and line item details.
  - The Line Item Breakdown should match the line items on the Order Form/Contract and should be entered separately for each year of the contract if a multi-year term.
  - The sum of the Line Items must equal the amount entered for budget.
  - Check the boxes of the supporting documentation received. You will upload these in the Documents section at the end of the request process
1. IT & Security Information:
  - Complete the Data Information section. Depending on your selection(s), additional required questions will appear.
  - If any data will be shared, a Vendor Security Review will be completed. The vendor will receive an email communication from GitLab's Security Risk Team requesting information regarding their security protocols.
  - If any personal data will be shared or accessed, a Privacy Review may be required. The vendor will receive communication from Zip requesting information regarding their data privacy practices.
  - Be as specific as you can about the type of data the vendor and/or system will have access to, and specifics about how they will receive that data. Failure to complete this section accurately will delay the review and approval of your request.
  - If any personal data will be shared, the Vendor will need to sign our DPA and SCC's as

directed by state and/or country statutory requirements.

- TIP: To increase speed of approval, send your supplier contact GitLab's DPA/SCCs for review right away. For the DPA, please inform the supplier contact that Schedule 1 and Schedule 3 must be completed by the supplier. Also alert them to the request from GitLab's Security Risk Team for security completion and Zip for privacy review completion. Let them know review and approval can't begin without these pieces.

#### 1. Documents & Surveys:

- For any software renewal/add-on that is based on usage (e.g. user quantities), a usage report is required for Procurement's review. This can be uploaded in the Documents section under 'Please attach any additional files for reference' at the end of the request process.

- Based on the usage report, Procurement will review the request to increase, decrease, or hold quantities flat.

- Upload any contracts and/or quotes you've received.

- Draft contracts are okay. Make note of any terms and/or pricing still being finalized- this can be done in the Comments section once you submit your request.

### Zip Change Requests

If you have a PO with an existing supplier and the costs have increased, end date has changed, and/or the scope or terms and conditions need to be amended, a Zip Change Request can be submitted.

By submitting a Zip Change Request, the applicable approvers will be added to the Zip workflow for review, and the Procurement team will amend the PO in Coupa on your behalf. Note, changes to an existing PO also must be approved by Finance, Functional, and Executive (if applicable) team members in Coupa like a new Purchase Request.

Once your Purchase Request is approved

1. Once the Purchase Request in Zip and Coupa is approved, a PO is generated, and GitLab has officially placed an order for your purchase! You may now begin work and/or obtaining the products/services.

1. The supplier will receive a copy of the PO order and number at the email address they supplied for Accounts Payable.

1. The supplier will receive communication from Coupa indicating how to make payment one of two ways:

- Directly in their Coupa portal

- Send invoice to [ap@gitlab.com](mailto:ap@gitlab.com) with PO number included on the invoice

- Failure to follow these instructions will delay payment

- Invoices uploaded to Coupa by a GitLab team member are not routed for payment.

1. If your request was new software, update the tech stack after the Zip Request is fully approved and the contract signed.

### Procurement Office Hours

If you have any questions or concerns that may not be addressed in the Handbook, we invite you to join us for Procurement Office Hours every Wednesday. During this dedicated time, our Procurement Team will be readily available to assist you and provide answers to your inquiries. If you're unable to join a call, please feel free to submit your questions in our Agenda, and we'll ensure a prompt response.

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## ## SECTION: finance/procurement/trial-agreement.md

If you have documents from a vendor that are not cost-related, such as a Trial/Demo Agreement, Engagement Letter, etc., please open a ZIP request selecting a Request a Demo/Trial (\$0 Contracts) workflow and proceed with completing the form.

On the request, provide received from the vendor documents for Legal and Security review.

Please, do not sign any document before Legal and Security approvals are collected.

After Legal and Security approvals are provided, the Procurement Team will route documents first for GitLab signature and then to the vendor for countersignature.

If you have any questions, please reach out to Procurement through the procurement Slack channel.

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## ## SECTION: finance/procurement/virtual-cards.md

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## ## SECTION: finance/procurement/vendor-guidelines/\_index.md

When procuring goods/services, GitLab will enter into an agreement with its vendors. This agreement will take the form of either, (i) a negotiated agreement which establishes the parties rights and obligations, or (ii) reference to the GitLab Standard Vendor Terms and Conditions (seen below).

With respect to either form of agreement, the terms and conditions will be referenced (and applicable) for any transaction document, Order Form, SOW or other document establishing GitLab's intent to procure goods/services.

The tables below highlight the current Standard Vendor Terms and Conditions, as well as the Legacy Standard Vendor Terms and Conditions. Vendors can review the dates related to these agreements to identify the applicable agreement based on when the parties entered into their relationship.

### Current Vendor Terms and Conditions

| <strong>Agreement Name</strong> |
|---------------------------------|
|---------------------------------|

|                                   |                                                      |
|-----------------------------------|------------------------------------------------------|
| <strong>Applicable Dates</strong> |                                                      |
|                                   |                                                      |
|                                   | <a href="#">Standard Vendor Terms and Conditions</a> |
|                                   | Effective February 24, 2023                          |

1.5 "Confidential Information" means any proprietary information that was previously, is currently, or is subsequently disclosed by the Disclosing Party (defined herein) to the Receiving Party (defined herein) and (i) is or was identified as confidential or proprietary at the time of disclosure, or, if disclosed orally, which is or was identified as confidential or proprietary at the time of disclosure and such designation is confirmed orally or in writing no later than thirty (30) days after such disclosure, or (ii) the nature of such proprietary information and the manner of disclosure are such that a reasonable person would understand it to be confidential. Confidential Information includes, without limitation, all proprietary information which relates to GitLab's business including, without limitation, business plans, financial data, customer information, marketing plans, technology, technical drawings, designs, schematics, algorithms, technical data, product plans, research plans, software, products, services, trade secrets, know-how, formulas, processes, ideas, and inventions (whether or not patentable).

1.6 "Deliverables" means the specific solution, end-product, or item to be created by Vendor, for GitLab, as documented in a SOW (defined herein) as part of a Transaction Document.

1.7 "Disclosing Party" means a party which discloses Confidential Information.

1.8 "Fees" means the amount(s) stated in an executed Transactional Document between the parties.

1.9 "Force Majeure" means events beyond the reasonable control of either party, including, but not limited to, acts of God, labor disputes or disturbances, material shortages or rationing, pandemics, riots, acts of war, governmental regulations, communication or utility failures, or casualties.

1.10 "GDPR" means the Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (General Data Protection Regulation).

1.11 "GitLab" means GitLab Inc. and any GitLab Affiliate identified in a Transaction Document.

1.12 "GitLab Code of Conduct" means the published document titled Code of Business Conduct and Ethics, updated from time to time, found at <https://ir.gitlab.com/static-files/7d8c7eb3-cb17-4d68-a607-1b7a1fa1c95d>.

1.13 "GitLab Data" means all GitLab information or data, including without limitation, personal data, used by Vendor in connection with the Agreement.

1.14 "Invoice" means Vendor's document which outlines the Fees owed by GitLab pursuant to an executed Transaction Document. Invoices must include: (i) Vendor's legal entity name, (ii) GitLab's legal entity name (as stated on the Transaction Document), (iii) GitLab's PO Number for the applicable purchase, (iv) the start date and/or end date of the Products and/or Professional Services (as defined below), (v) quantity, unit price, total price, applicable taxes, and identification of the Products and/or Professional Services.

1.15 "Vendor" means the entity, or an Affiliate of such entity, supplying Products and/or Professional Services to GitLab.

1.16 "PO" means the purchase order, or similar document, provided by GitLab to Vendor. Each PO shall include a unique identification number (hereinafter referred to as "PO Number").

1.17 "Products" means Vendor's solution(s) which are identified in the Transaction Document, this includes support, maintenance and other elements which create the Product.

1.18 "Receiving Party" means the party receiving Confidential Information.

1.19 "Professional Services" means services identified in a Transaction Document and accompanying SOW.

1.20 "Security Breach" means Vendor becoming aware of or notified of a breach of the Applicable Data Protection Laws.

1.21 "SOW" means the task list, Deliverables (if applicable) outlining the items to be delivered under the Professional Services.

1.22 "Transaction Document" means the ordering agreement which states the purchase of Products and/or Professional Services by GitLab from Vendor. Such Transactional Document shall not be enforceable unless executed by GitLab.

## 2. APPLICABILITY

2.1 All sales of Products and/or Professional Services by Vendor to GitLab are subject to this Agreement and the applicable Transaction Document. Terms and conditions of the Vendor (whether contained in an invoice, confirmation or otherwise) which in any way conflict, are inconsistent with, different than or in addition to this Agreement shall not be binding on GitLab. Such terms and conditions are expressly rejected and shall not be considered applicable unless expressly agreed to in writing by GitLab. The supply of Products and/or Professional Services to GitLab pursuant to any PO shall be conclusive evidence of Vendor's approval of and consent to the terms and conditions herein contained in this Agreement.

## 3. TERMS OF PAYMENT

3.1 Unless otherwise agreed to between the parties in a Transaction Document, or similar agreement executed by GitLab, payment(s) shall be made in U.S. Dollars in accordance with the remittance instructions furnished by Vendor in an Invoice. Payment terms are net sixty (60) days from the date of the Invoice.

3.2 GitLab shall have no obligation for payment of any amounts which are, (i) not agreed to in writing by GitLab, (ii) Deliverables that are not Accepted by GitLab, and/or (ii) in excess of the Fees stated in a Transaction Document.

3.3 Vendor shall supply invoices to ap@gitlab.com

## 4. CONFIDENTIALITY

4.1 The Receiving Party agrees: (i) not to divulge to any third person any such Confidential Information, (ii) to give access to such Confidential Information solely to those employees with a need to have access thereto for purposes of this Agreement, and (iii) to take the same



security precautions to protect against disclosure or unauthorized use of such Confidential Information that it takes with its own Confidential Information, but in no event will Receiving Party apply less than reasonable precautions to protect such Confidential Information. The Disclosing Party agrees that the foregoing shall not apply with respect to any information that the Receiving Party can document: (a) is or becomes generally available to the public without any action by, or involvement of, the Receiving Party, (b) was in its possession or known by Receiving Party prior to receipt from the Disclosing Party, (c) was rightfully disclosed to it without restriction by a third party, or (d) was independently developed without use of any Confidential Information of the Disclosing Party. Nothing in this Agreement will prevent the Receiving Party from disclosing Confidential Information pursuant to any judicial or governmental order, provided that the Receiving Party gives the Disclosing Party reasonable prior written notice of such disclosure to allow Disclosing Party to contest such order.

4.2 Each party acknowledges and agrees that the other may suffer irreparable damage in the event of a breach of Section 4 of this Agreement and that such party will be entitled to seek injunctive relief (without the necessity of posting a bond) in the event of any such breach.

## 5. WARRANTIES

5.1 Vendor represents, warrants and covenants that: (a) the Products and Deliverables are free from defects in material and workmanship, (b) Professional Services will be provided in a professional and workman-like manner, (c) Products and Deliverables shall conform to the specifications represented by Vendor, (d) the Products and Deliverables will not infringe a third party's intellectual property rights, (e) it will comply with the GitLab Code of Conduct, and (f) its performance under this Agreement will comply with all applicable laws, rules and regulations.

## 6. TERMINATION

6.1 Termination for Convenience. GitLab may terminate this Agreement, any SOW or Order, or all at any time, for no reason or for any reason, upon notice to Vendor. Upon receipt of notice of such termination, Vendor shall inform GitLab of the extent to which it has completed performance as of the date of the notice, and Vendor will collect and deliver to GitLab whatever Work Product then exists, if applicable. GitLab will pay Vendor for all Work acceptably performed through the date of notice of termination, provided that GitLab will not be obligated to pay any more than the payment that would have become due had Vendor completed and GitLab had accepted the Work. GitLab will have no further payment obligation in connection with any termination.

6.2 Upon termination or expiration of this Agreement, Vendor shall return or destroy any GitLab Confidential Information and provide confirmation thereof.

## 7. FORCE MAJEURE

7.1 Neither party shall be liable to the other for delays or failures in performance resulting from causes beyond the reasonable control of that party, including, but not limited to, acts of God, labor disputes or disturbances, material shortages or rationing, pandemics, riots, acts of war, governmental regulations, communication or utility failures, or casualties ("Force Majeure"). In the event of a Force Majeure impact on the performance of either party, then the parties are immediately relieved of obligation to perform. From notice to vendor, GitLab is

relieved of the payment obligation. As soon as is practical, but not more than sixty (60) days from GitLab's notice to supplier, GitLab shall receive from supplier a pro-rata refund of, any fees previously paid, from the date of notice to vendor to the end of the term.

## 8. INTELLECTUAL PROPERTY

8.1 Any inventions, products, designs, specification, drawings, technical information, data, tools, processes, techniques, computer programs, databases, user interfaces, know-how, notes, works of authorship software, or any other material furnished, or paid for, by GitLab shall: (i) remain or become GitLab's property, (ii) be used by Vendor exclusively to provide the Products and/or Professional Services, (iii) be destroyed or returned, at GitLab's sole option, to GitLab upon written request. Vendor hereby assigns and agrees to assign GitLab all right, title, and interest in and to the Deliverables. For the avoidance of doubt, the assignment of right, title and interest shall not apply to Vendor Product(s) which are "off-the-shelf" and do not include any GitLab Confidential Information.

## 9. INSURANCE

9.1 Vendor shall be solely responsible for maintaining for itself and requiring its subcontractors and agents to maintain adequate insurance coverage. Upon request, Vendor shall supply GitLab with certificates of insurance.

## 10. INDEMNIFICATION

10.1 Vendor shall defend, indemnify, and hold GitLab harmless from claims demands, causes of action and liability for damages, losses, costs and expenses, including legal fees and disbursements and other amounts paid or payable to unaffiliated third parties resulting from: (i) the infringement or violation of any intellectual property rights by the Products and/or Deliverables, or (ii) the violation of applicable law or regulation by Vendor in performance of its obligations hereunder. GitLab shall notify Vendor of any such claim or demand and Vendor shall defend any suits based thereon. If an injunction is issued as a result of any such claim, Vendor agrees, at its expense, and at GitLab's option, to: (a) procure for GitLab the right to continue using items purchased hereunder, (b) replace such Products and/or Deliverables with non-infringing items, (c) modify the Products and/or Deliverables so they are no longer infringing, or (d) refund to GitLab the amount paid for the Products and/or Deliverables.

## 11. LIMITATION OF LIABILITY

11.1 IN NO EVENT WILL GITLAB BE LIABLE FOR ANY SPECIAL, INCIDENTAL, PUNITIVE OR CONSEQUENTIAL DAMAGES OF ANY KIND IN CONNECTION WITH THIS AGREEMENT, OR EXECUTED TRANSACTION IF GITLAB HAS BEEN INFORMED IN ADVANCE OF THE POSSIBILITY OF SUCH DAMAGES. GITLAB'S LIABILITY UNDER THIS AGREEMENT AND/OR ANY TRANSACTION DOCUMENT WILL NOT EXCEED THAT ON THE APPLICABLE TRANSACTION DOCUMENT FOR THE PROVISION OF THE PRODUCTS AND /OR SERVICES STATED THEREIN.

## 12. INDEPENDENT CONTRACTOR

12.1 The relationship between GitLab and Vendor is one of an independent contractor, and neither party will represent itself as a dealer, agent or other representative of the other party or as having authority to assume or create obligations or otherwise act on behalf of the

other party.

### 13. REMEDIES

13.1 The rights and remedies to GitLab herein shall be cumulative and in addition to any other rights and remedies provided by law or equity or those provided under the Uniform Commercial Code.

### 14. PUBLICITY

14.1 Vendor will not, without first obtaining GitLab's prior written consent from the GitLab legal team, advertise or otherwise disclose that Vendor has furnished or agreed to furnish Products and/or Professional Services to GitLab under this Agreement.

### 15. DATA PRIVACY

15.1 Vendor shall ensure that any and all GitLab Data is collected, processed, transferred and used in full compliance with the Applicable Data Protection Laws. Vendor shall adopt and maintain appropriate organization, technical and security measure prior to any such collection, processing or transfer in order to protect against any unauthorized access to or use of GitLab Data. Vendor shall immediately inform GitLab of any Security Breach and cooperate with GitLab in any investigation thereof and in the implementation of any measures reasonably required to be taken in response thereto. If required by Applicable Data Protection Laws, the parties will enter into a Data Processing Agreement for the transfer of any GitLab Data outside of the European Union.

### 16. SEVERABILITY

16.1 If any provision contained in this Agreement is held to be invalid or unenforceable under the laws of any jurisdiction where enforcement is sought, such invalidity or unenforceability will not affect any other provisions of this Agreement, and this Agreement will be construed as if such invalid or unenforceable provision had not been contained herein in that jurisdiction.

### 17. GOVERNING LAW

17.1 This Agreement shall be construed and enforced in accordance with the laws of California, U.S.A., and the parties submit to the jurisdiction of the State and Federal courts in San Francisco, California, without giving effect to any conflicts of laws principles.

### 18. ENTIRE AGREEMENT

18.1 This Agreement contains the entire understanding of the parties hereto in respect of transactions contemplated hereby and supersedes any prior agreements and understandings between the parties with respect to such subject matter. The parties agree that all such prior agreements and understandings shall have no further force and effect.

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## SECTION: finance/procurement/vendor-guidelines/vendor-agreement.md

## STANDARD VENDOR TERMS AND CONDITIONS

These standard vendor terms and conditions (the "Agreement") is between GitLab Inc. with offices at 268 Bush Street, Suite 350, San Francisco, CA 94104 (or if a different corporate entity is listed as "GitLab" on a Transaction Document as defined below) ("GitLab" or "Customer"), and the provider of Deliverables and/or Products as set forth in a Transaction Document (as defined below). This Agreement is entered into on the earlier of GitLab and Vendor mutually agreeing, in writing, to a Transaction Document referencing this Agreement ("Effective Date"). For the avoidance of doubt, in the event the Transaction Document does not reference any agreement, the terms and conditions of this Agreement shall apply.

### 1. DEFINITIONS

1.1 "Accepted" means GitLab's written confirmation of receipt of Deliverables or Products having been provided in a manner deemed appropriate by GitLab. "Acceptance" shall be deemed to occur on the date when, in the reasonable opinion of GitLab, the Deliverable(s) or Products conform to the requirements set forth in this Agreement, the Transaction Document and/or SOW.

1.2 "Affiliates" means any entity(ies) controlling, controlled by, and/or under common control with a party hereto, where "control" means the ownership of more than 50% of the voting securities of such entity.

1.3 "Agreement" means these Vendor Terms and Conditions and any/ all Transaction Documents mutually agreed to by the parties in writing.

1.4 "Confidential Information" means any proprietary information that was previously, is currently, or is subsequently disclosed by the Disclosing Party (defined herein) to the Receiving Party (defined herein) and (i) is or was identified as confidential or proprietary at the time of disclosure, or, if disclosed orally, which is or was identified as confidential or proprietary at the time of disclosure and such designation is confirmed orally or in writing no later than thirty (30) days after such disclosure, or (ii) the nature of such proprietary information and the manner of disclosure are such that a reasonable person would understand it to be confidential. Confidential Information includes, without limitation, all proprietary information which relates to GitLab's business including, without limitation, business plans, financial data, customer information, marketing plans, technology, technical drawings, designs, schematics, algorithms, technical data, product plans, research plans, software, products, services, trade secrets, know-how, formulas, processes, ideas, and inventions (whether or not patentable).

1.5 "Deliverables" means the specific solution, end-product, or item to be created by Vendor, for GitLab, as documented in a SOW (defined herein) as part of a Transaction Document.

1.6 "Disclosing Party" means a party which discloses Confidential Information.

1.7 "Fees" means the amount(s) stated in an executed Transactional Document between the parties.

1.8 "Force Majeure" means events beyond the reasonable control of either party as defined herein.

1.9 "GDPR" means the Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (General Data Protection Regulation).

1.10 "GitLab" means GitLab Inc. and any GitLab Affiliate identified in a Transaction Document.

1.11 "GitLab Code of Conduct" means the published document, updated from time to time, found at <https://handbook.gitlab.com/handbook/legal/partner-code-of-ethics/>.

1.12 "GitLab Data" means all GitLab information or data, including without limitation, personal data and data otherwise defined by applicable data privacy laws and regulations used by Vendor in connection with the Agreement.

1.13 "Invoice" means Vendor's document which outlines the Fees owed by GitLab pursuant to an executed Transaction Document. Invoices must include: (i) Vendor's legal entity name, (ii) GitLab's legal entity name (as stated on the Transaction Document), (iii) GitLab's PO Number for the applicable purchase, (iv) the start date and/or end date of the Products and/or Professional Services (as defined below), (v) quantity, unit price, total price, applicable taxes, and identification of the Products and/or Professional Services.

1.14 "Order" Transaction Document for Products or licensed subscriptions.

1.15. "PO" means the purchase order, or similar document, provided by GitLab to Vendor. Each PO shall include a unique identification number (hereinafter referred to as "PO Number").

1.16 "Products" means Vendor's solution(s) which are identified in the Transaction Document, this includes support, maintenance and other elements which create the Product.

1.17 "Professional Services" means services identified in a Transaction Document. Professional Services includes all services and materials used in fulfilling obligations under an SOW.

1.18 "Receiving Party" means the party receiving Confidential Information.

1.19 "Statement of Work" or "SOW" means a Transaction document showing the task list, Deliverables or milestones (if applicable) outlining the items to be delivered under the Professional Services.

1.20 "Transaction Document" means the ordering agreement which states the purchase of Products and/or Professional Services by GitLab from Vendor in the form of a Statement of Work or Order. Such Transactional Document shall not be enforceable unless executed by GitLab or the GitLab Affiliate.

1.21 "Vendor" means the entity or entity subcontractor, employee, agent, or an Affiliate supplying Products and/or Professional Services to GitLab.

## 2. APPLICABILITY

2.1 All sales of Products and/or Professional Services by Vendor to GitLab are subject to this Agreement and the applicable Transaction Document. Terms and conditions of the Vendor (whether contained in an invoice, confirmation or otherwise) which in any way conflict, are inconsistent

with, different from or in addition to this Agreement shall not be binding on GitLab. Such terms and conditions are expressly rejected and shall not be considered applicable unless expressly agreed to in writing by GitLab. The supply of Products and/or Professional Services to GitLab pursuant to any PO shall be conclusive evidence of Vendor's approval of and consent to the terms and conditions herein contained in this Agreement. For the avoidance of doubt, in the event no terms and conditions are executed, or agreed to between the parties, this Agreement shall govern both parties rights and obligations.

2.2 All Professional Services shall be in accordance with this Agreement. Vendor shall not make any changes to the Professional Services without the written consent of GitLab. The Professional Services contemplated herein shall be set forth in a Statement of Work, as accepted by Vendor and GitLab in writing, which shall reference this Agreement.

### 3. TERMS OF PAYMENT

3.1 Unless otherwise agreed to between the parties in a Transaction Document, or similar agreement executed by GitLab, payment(s) shall be made in U.S. Dollars in accordance with the remittance instructions furnished by Vendor in an Invoice. Payment terms are net sixty (60) days from the date of receipt of Invoice.

3.2 GitLab shall have no obligation for payment of any amounts which are, (i) not agreed to in writing by GitLab, (ii) Deliverables that are not Accepted by GitLab, and/or (ii) in excess of the Fees stated in a Transaction Document.

3.3 In the event of an invoicing error, GitLab shall notify Vendor, in writing, as soon as possible, but not later than 30 days from receipt of invoice and the parties shall work in good faith to resolve any billing disputes. GitLab agrees that the undisputed portion of any invoice is due and payable in accordance with the payment terms herein or as mutually agreed to, in writing, in a Transaction Document.

3.4 Correct Vendor invoices must be submitted no later than ninety (90) days from the provisions of Professional Services and/or Products ("Late Invoices"). GitLab shall be relieved of payment obligations for Late Invoices. Correct invoices accurately reflect the quantity, pricing, and nature of

the Professional Services and/or Products as agreed to in the applicable Transaction Document. Applicable taxes owed by GitLab should be accurately itemized.

3.5 Vendor shall supply invoices and receive payments through the current procurement tool indicated by GitLab.

### 4. CONFIDENTIALITY

4.1 The Receiving Party agrees: (i) not to divulge to any third person any such Confidential Information, (ii) to give access to such Confidential Information solely to those employees with a need to have access thereto for purposes of this Agreement, and (iii) to take the same security precautions to protect against disclosure or unauthorized use of such Confidential Information that it takes with its own Confidential Information, but in no event will Receiving Party apply less than reasonable precautions to protect such Confidential Information. The Disclosing Party agrees that the foregoing shall not apply with respect to any information that

the Receiving Party can document: (a) is or becomes generally available to the public without any action by, or involvement of, the Receiving Party, (b) was in its possession or known by Receiving Party prior to receipt from the Disclosing Party, (c) was rightfully disclosed to it without restriction by a third party, or (d) was independently developed without use of any Confidential Information of the Disclosing Party. Nothing in this Agreement will prevent the Receiving Party from disclosing Confidential Information pursuant to any judicial or governmental order, provided that the Receiving Party gives the Disclosing Party reasonable prior written notice of such disclosure to allow Disclosing Party to contest such order.

4.2 Each party acknowledges and agrees that the other may suffer irreparable damage in the event of a breach of Section 4 of this Agreement and that such party will be entitled to seek injunctive relief (without the necessity of posting a bond) in the event of any such breach.

## 5. RIGHT TO AUDIT

5.1 Subject to Vendor's reasonable security and confidentiality procedures, GitLab, or any third party auditor retained by GitLab, may at any time, but not more frequently than once per year, during normal business hours, audit the books, records and accounts of Vendor to the extent that such books, records and accounts pertain to the sale of any Products and Services hereunder or otherwise relate to the performance of this Agreement by Vendor. Notwithstanding the foregoing, GitLab shall have the right to audit in excess of once per year if it has a reasonable belief that Vendor is in breach of obligations herein, or, in violation of applicable laws and regulation. Vendor shall maintain all such books, records, and accounts for a period of at least three (3) years after the date of expiration or termination of this Agreement. The Purchaser's right to audit under this Section 5 and GitLab's rights hereunder shall survive the expiration or termination of this Agreement for a period of three (3) years after the date of such expiration or termination.

5.2 Audit rights herein include, but are not limited, to service and operating controls, service level agreement reports/ certifications, compliance reporting applicable to Vendor, data privacy and confidentiality policy, payment card industry reports, if applicable, financial and insurance statements, business continuity and disaster recovery reports, information security, third party risk management, risk rating methodologies, billing, and subcontractors.

## 6. WARRANTIES

6.1 Vendor represents, warrants and covenants that: (a) the Products and Deliverables are free from defects in material and workmanship, (b) Professional Services will be provided in a professional and workman-like manner, (c) Products and Deliverables shall conform to the specifications represented by Vendor, (d) the Products and Deliverables will not infringe a third party's intellectual property rights, (e) it will comply with the GitLab Code of Conduct, and (f) its performance under this Agreement will comply with all applicable laws, rules and regulations, including, but not limited to data privacy related laws, rules and regulations.

## 7. TERMINATION

7.1 Termination for Convenience. GitLab may terminate this Agreement, any SOW or Order, or all at any time, for no reason or for any reason, upon notice to Vendor. Upon receipt of notice of such termination, Vendor shall inform GitLab of the extent to which it has completed

performance as of the date of the notice, and Vendor will collect and deliver to GitLab whatever Work Product then exists, if applicable. GitLab will pay Vendor for all Work acceptably performed through the date of notice of termination, provided that GitLab will not be obligated to pay any more than the payment that would have become due had Vendor completed and GitLab had accepted the Work. GitLab will have no further payment obligation in connection with any termination.

7.2 Upon termination or expiration of this Agreement, Vendor shall return or destroy any GitLab Confidential Information and provide written certification thereof.

## 8. FORCE MAJEURE

8.1 Neither party shall be liable to the other for delays or failures in performance resulting from causes beyond the reasonable control of that party, including, but not limited to, acts of God, labor disputes or disturbances, material shortages or rationing, local epidemics, pandemics, riots, acts of war, governmental regulations, communication or utility failures, or casualties and if applicable, local, national or international travel restrictions or disruptive required quarantines that last three (3) or more days ("Force Majeure"). In the event of a Force Majeure impact on the performance of either party, then the parties are immediately relieved of obligation to perform. From notice to vendor, GitLab is relieved of the payment obligation. As soon as is practical, but not more than sixty (60) days from written notice from one party to the other invoking rights under this provision, GitLab shall receive from Vendor a pro-rata refund of, any fees previously paid, from the date of notice to the end of the term.

## 9. INTELLECTUAL PROPERTY

9.1 Any inventions, products, designs, specification, drawings, technical information, data, tools, processes, techniques, computer programs, databases, user interfaces, know-how, notes, works of authorship software, or any other material furnished, or paid for, by GitLab shall:

- (i) remain or become